
ELTON EALY v. GENERAL MOTORS, LLC
Case No. CU25-03660

Demurrer

TENTATIVE RULING

Defendant GENERAL MOTORS, LLC's demurrer directed to Plaintiff ELTON EALY's complaint is overruled as moot. Plaintiff filed a first amended complaint on May 18, 2026, within his time for filing opposition to the demurrer. (Code Civ. Proc., § 1005, subd. (b).) A timely filed amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.)

EDWARDS, et al. v. FUNG, et al.
Case No. cu25-08969

Demurrer by Defendants MARIA RILEY, BRIAN FUNG, BLOSSOM OWYANG, and RENNIE OWYANG to Plaintiffs' Complaint

TENTATIVE RULING

C.C.P. §430.10(e) authorizes a demurrer to be filed when "The pleading does not state facts sufficient to constitute a cause of action."

In general, a complaint must contain "charging allegations"—allegations against each defendant charging them with some wrongful act. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §6:85, p. 28 [charging allegations must run against Doe defendants]; §6:123, p. 39 ["ultimate facts"—facts sufficient to state a cause of action must be alleged].

A plaintiff must be a "real party in interest as to the claim being asserted.

First, plaintiff must be the "real party in interest" with respect to the claim sued upon. Except as otherwise provided by statute, "every action must be prosecuted in the name of the real party in interest." [CCP § 367; see *Dino v. Pelayo* (2006) 145 CA4th 347, 353, 51 CR3d 620, 624, fn. 2 (citing text); *Cloud v. Northrop Grumman Corp.* (1998) 67 CA4th 995, 1004, 79 CR2d 544, 549 (citing text)]

"Real Party in Interest" Defined: Generally, the real party in interest is the person who has the right to sue under the substantive law. It is the person who owns or holds title to the claim or property involved, as opposed to others who may be interested or benefited by the litigation. [*Gantman v. United Pac. Ins. Co.* (1991) 232 CA3d 1560, 1566, 284 CR 188, 191; *Jasmine Networks, Inc. v.*